

Court No. - 35

Case :- WRIT - C No. - 11292 of 2019

Petitioner :- M/S New Fab Engineering Works And Another

Respondent :- Paschimanchal Vidyut Vitral Nigam And 3 Others

Counsel for Petitioner :- Mayank Kumar Agrawal

Counsel for Respondent :- C.S.C.,Awadhesh Kumar Saxena

Hon'ble Bharati Sapru,J.

Hon'ble Vivek Varma,J.

Put up this matter on 15.04.2019 as unlisted to enable learned Counsel for the respondents to obtain instructions.

Order Date :- 8.4.2019

S.P.

Case :- WRIT - C No. - 11292 of 2019

Petitioner :- M/S New Fab Engineering Works And Another

Respondent :- Paschimanchal Vidyut Vitral Nigam And 3 Others

Counsel for Petitioner :- Mayank Kumar Agrawal

Counsel for Respondent :- C.S.C.,Awadhesh Kumar Saxena

Hon'ble B. Amit Sthalekar,J.

Hon'ble Piyush Agrawal,J.

Heard Shri Mayank Kumar Agrawal, learned counsel for the petitioners, Shri A.K. Saxena, for the respondent nos. 1 & 2 and learned standing counsel for respondent nos. 3 & 4.

The petitioners, in this writ petition, are seeking quashing of the orders dated 26.12.2018, 19.12.2018 and citation dated 15.02.2019.

The case of the petitioners is that the officials of the respondent nos. 1 & 2 came to the premises of the petitioners and removed the electricity meter and broken it open and tested it on the spot itself through Assistant Engineer (Meter). Learned counsel for the petitioners submits that under clause 5.6 (c)(iii) of the Electricity Supply Code, 2005, the testing is to be done in an independent laboratory of the choice of the consumer, which has not been done in the present case. He further submits that the electricity meter itself has been broken and testing has been done by the Assistant Engineer (Meter) on the spot itself and therefore, no useful purpose would be served by sending the meter to an independent laboratory for testing as the meter has already been tampered with by the Department.

Shri A.K. Saxena, learned counsel for the respondents prays for and is granted three weeks' time to file counter affidavit.

List this matter on 08.05.2019.

Till the next date of listing, the impugned orders dated 26.12.2018, 19.12.2018 and citation dated 15.02.2019 shall remain stayed.

We further direct that in the meantime, the respondent nos. 1 & 2 shall also restore the electricity connection of the petitioners through a new tested meter.

Order Date :- 15.4.2019

Amit Mishra

Court No. - 39

Case :- WRIT - C No. - 11292 of 2019

Petitioner :- M/S New Fab Engineering Works And Another

Respondent :- Paschimanchal Vidyut Vitral Nigam And 3 Others

Counsel for Petitioner :- Mayank Kumar Agrawal

Counsel for Respondent :- C.S.C.,Awadhesh Kumar Saxena

Hon'ble B. Amit Sthalekar,J.

Hon'ble Piyush Agrawal,J.

List after two weeks.

Interim order is extended till the next date of listing.

Order Date :- 8.5.2019

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Court No. - 39

Case :- WRIT - C No. - 11292 of 2019

Petitioner :- M/S New Fab Engineering Works And Another

Respondent :- Paschimanchal Vidyut Vitral Nigam And 3 Others

Counsel for Petitioner :- Mayank Kumar Agrawal

Counsel for Respondent :- C.S.C.,Awadhesh Kumar Saxena

Hon'ble B. Amit Sthalekar,J.

Hon'ble Piyush Agrawal,J.

List after two weeks.

Interim order, granted earlier, is extended till the next date of listing.

Order Date :- 23.5.2019

N Tiwari

Court No. - 29

Case :- WRIT - C No. - 11292 of 2019

Petitioner :- M/S New Fab Engineering Works And
Another

Respondent :- Paschimanchal Vidyut Vitral Nigam And 3
Others

Counsel for Petitioner :- Mayank Kumar Agrawal

Counsel for Respondent :- C.S.C.,Awadhesh Kumar
Saxena

Hon'ble Pankaj Mithal,J.

Hon'ble Vivek Agarwal,J.

List this case in the 1st week of December, 2019.

Stay order granted earlier shall remain in operation till the
next date of listing.

Order Date :- 30.10.2019

piyush